REPUBLIC OF UGANDA

CONTRACT
(Lumpsum)
For

SUPPLY&DELIVERY OF THE SPARE PARTS FOR THE DRYING UNIT FOR THE PILOT PLANT AT PIBID/BIRDC-TBI NYARUZINGA-BUSHENYI

Between

THE GOVERNMENT OF THE REPUBLIC OF UGANDA

Represented by

THE PRESIDENTIAL INITIATIVE ON BANANA INDUSTRIAL DEVELOPMENT (PIBID)/BANANA INDUSTRIAL RESEARCH AND DEVELOPMENT CENTRE (BIRDC)

And

M/S INNOTECH INGENIEURSGESELLSCHAFT mbH

Proc. Reference No: PIBID/SUPLS/2025-2026/00393

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Table of Contents

SECTION I: FORM OF CONTRACT AGREEMENT.....3

SECTION II. GENERAL CONDITIONS OF CONTRACT 6

SECTION III: SPECIAL CONDITIONS OF CONTRACT 19

APPENDIX 1: PROFORMA INVOICE SUBMITTED BY BIDDER.....21

APPENDIX 2: LIST OF SUPPLIES AND PRICE SCHEDULE. 22

APPENDIX 3: SPECIFICATIONS AND COMPLIANCE SHEET.....23

APPENDIX 4: DELIVERY AND COMPLETION SCHEDULE……...25

APPENDIX 5: CONTRACTS COMMITTEE APPROVALS.....24

APPENDIX 6: BEST EVALUATED BIDDER NOTICE**Fehler! Textmarke nicht definiert.**

APPENDIX 7: CLEARANCE OF PSST TO TRANSACT IN FOREIGN CURRENCY

..... **Fehler! Textmarke nicht definiert.**

APPENDIX 8: JUSTIFICATION FOR USE OF PROCUREMENT METHOD ..... **Fehler! Textmarke nicht definiert.**

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SECTION I: FORM OF CONTRACT AGREEMENT

Procurement Reference No: PIBID/SPLS/2025-2026/00393

THIS CONTRACT AGREEMENT is made on the ……. day of …….…… 2026, between **THE GOVERNMENT OF THE REPUBLIC OF UGANDA** represented by the **Presidential Initiative on Banana Industrial Development (PIBID),** whose successor entity is the **Banana Industrial Research and Development Centre (BIRDC)** of P.O. Box 35747, Plot 26A Lumumba Avenue, Kampala, Uganda **(**hereinafter called **the "Client**" or "**the PIBID/BIRDC**") on the one part

And

M/S INNOTECH Ingenieursgesellschaft mbH a Company organized and incorporated under the Laws of Germany and having its principal address at Brandenburger Straße2, 71229 Leonberg; Telephone: +49 7031-744741; Email: info@innotech-ing.de (hereinafter referred to as "**the Provider**") represented by the Managing Director, **Dr. Albert Esper** of the other part.

WHEREAS, the PIBID/BIRDC invited a bid for the **Supply and Delivery of Spare Parts for the Drying Unit for the PIBID/BIRDC Pilot Plant at the TBI in Nyaruzinga-Bushenyi** in accordance with the technical specifications or Statement of Requirements as attached, hereto as Appendix 1 that is the **Proforma Invoice No.** (hereinafter referred to as the **"Supplies"**) for the PIBID/BIRDC **Pilot Plant at the TBI in Nyaruzinga-Bushenyi**, (hereinafter referred to as **the "PIBID Project"),** and the Provider has agreed to supply the said spares for the slicing machine.

And

WHEREAS, The PIBID/BIRDC has accepted the quotation submitted by the Provider (**M/S INNOTECH INGENIEURSGESELLSCHAFT mbH)** at a contract sum of **Euros 9,722.75 (Euros Nine Thousand Seven Hundred Twenty-Two and seventy-five cents only) based on CIP-Kampala-Uganda Incoterms** (hereinafter referred to as **"the Contract Price").**

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NOW THIS AGREEMENT WITNESSES AS FOLLOWS:

1) In this agreement, words and expressions shall have the same meaning as are respectively assigned to them in the Contract referred to.
2) The Contract Sum is **Euros 9,722.75 (Euros Nine Thousand Seven Hundred Twenty-Two and seventy-five cents only) based on CIP-Kampala-Uganda Incoterms.**
3) The Provider shall perform the delivery of the Supplies on **CIP-Kampala-Uganda Incoterms** in accordance with INCOTERMS 2020.
4) In consideration of the payments to be made by the PIBID/BIRDC to the Provider as indicated in this Agreement, the Provider hereby covenants with the PIBID/BIRDC to provide the Supplies and Related Services and to remedy defects therein in conformity in all respects with the provisions of the Contract.
5) The PIBID/BIRDC hereby covenants to pay the Provider in consideration of the provision of the Supplies and Related Services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.
6) The following documents shall constitute the Contract between the PIBID/BIRDC and the Provider, and each shall be read and construed as an integral part of the Contract:
   a) This Contract Agreement
   b) The Provider's Bid dated **26th January,2026,** and the Appendices hereto
      - Appendix 1: Proforma Invoice submitted by Bidder
      - Appendix 2: List of Supplies and Price Schedules
      - Appendix 3: Specifications and Compliance sheet.
      - Appendix 4: Delivery and Completion Schedule
      - Appendix 5: Contracts Committee Approval Minutes
      - Appendix 6: Best Evaluated Bidder's Notice
      - Appendix 7: Clearance of PSST to transact in foreign currency
      - Appendix 8: Justification for use of Direct Procurement Method
   c) General Conditions of Contract
   d) Special Conditions of Contract

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7) In the event of any ambiguity or conflict between the Contract Documents listed above, the order of precedence shall be the order in which the contract Documents are listed in Article 5 (Contract Documents) above.

IN WITNESS WHEREOF the parties hereto have caused this Contract to be signed in their respective names as of the day and the year first above written.

SIGNED for and on behalf of **THE GOVERNMENT OF THE REPUBLIC OF UGANDA**

_____

THE DIRECTOR GENERAL,
BANANA INDUSTRIAL RESEARCH AND DEVELOPMENT CENTRE (BIRDC)

_____

NAME

In the presence of Witness

_____

SIGN

_____

LEGAL PROFESSIONAL

Signed for and on behalf of **M/S INNOTECH INGENIEURSGESELLSCHAFT mbH**

_____

SIGN

Albert Esper, Managing Director
NAME & DESIGNATION

In the presence of Witness

_____

SIGN

Birgit Huck, Office Managerin
NAME & DESIGNATION

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SECTION II. GENERAL CONDITIONS OF CONTRACT

1. Definitions

The following words and expressions shall have the meanings hereby assigned to them:

(a) "Completion" means the fulfilment of the Related Services by the Provider in accordance with the terms and conditions set forth in the Contract.

(b) "Contract" means the Agreement entered into between the PIBID/BIRDC and the Provider, together with the Contract Documents referred to therein, including all attachments, appendices, and all documents incorporated by reference therein.

(c) "Contract Documents" means the documents listed in the Agreement, including any amendments thereto.

(d) "Contract Price" means the price payable to the Provider as specified in the Agreement, subject to such additions and adjustments thereto or deductions there from, as may be made pursuant to the Contract.

(e) "Day" means working day.

(f) "Delivery" means the transfer of the Supplies from the Provider to the PIBID/BIRDC in accordance with the terms and conditions set forth in the Contract.

(g) "Eligible Countries" means the countries and territories eligible as listed in the SCC.

(h) "GCC" means the General Conditions of Contract.

(i) "PIBID/BIRDC" means the entity purchasing the Supplies and Related Services, as specified in the Agreement.

(j) "Provider" means the natural person, private or government entity, or a combination of the above, whose bid to perform the Contract has been accepted by the PIBID/BIRDC and is named as such in the Agreement, and includes the legal successors or permitted assigns of the Provider.

(k) "Related Services" means the services incidental to the provision of Supplies, such as insurance, installation, training and initial maintenance and other similar obligations of the Provider under the Contract.

(l) "SCC" means the Special Conditions of Contract.

(m) "Subcontractor" means any natural person, private or government entity, or a combination of the above, including its legal successors or permitted assigns, to whom any part of the Supplies to be provided or execution of any part of the Related Services is subcontracted by the Provider.

(n) "Supplies" means goods, raw materials, products, livestock, assets, land, equipment or objects of any kind and description in solid, liquid or gaseous form, or in the form of electricity, or intellectual and proprietary rights as well as works or services incidental to the provision of such supplies where the value of such works or services does not exceed the value of the supplies.

(o) "The Site," where applicable, means the place named in the SCC.

(p) "Tribunal" means the Tribunal established under the Public Procurement and Disposal of Public Assets Act, 2003.

2. Contract Documents

2.1 The documents forming the Contract shall be interpreted in the following order of priority:

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(a) Agreement,

(b) The Provider's Bid, as amended by any clarifications,

(c) Special Conditions of Contract,

(d) General Conditions of Contract,

(e) Statement of Requirements,

(f) any other document listed in the SCC as forming part of the Contract.

2.2 Subject to the order of precedence set forth in Sub-Clause 2.1, all documents forming the Contract (and all parts thereof) are intended to be correlative, complementary, and mutually explanatory.

3. Corrupt Practices

3.1 It is the Government of Uganda's policy to require that Procuring and Disposing Entities, as well as Bidders and Providers under Government financed contracts, observe the highest standard of ethics during the procurement and execution of such contracts. In pursuit of this policy, the Government of Uganda:

(a) defines, for the purposes of this provision, the terms set forth below as follows:

(i) "corrupt practice" means the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value, to influence the action of a public official in the procurement process or in contract execution; and

(ii) "fraudulent practice" is any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation;

(iii) "collusive practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;

(iv) "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;

(b) will suspend a firm, either indefinitely or for a stated period of time, from being awarded a Government funded contract if it at any time determines that the firm has engaged in corrupt, fraudulent, collusive or coercive practices in competing for, or in executing, a Government funded Contract.

3.2 The Provider shall permit the Government of Uganda to inspect the Provider's accounts and records relating to the performance of the Provider and to have them audited by auditors appointed by the Government of Uganda, if so required by the Government.

3.3 In pursuit of the policy defined in Sub-Clause 3.1, the PIBID/BIRDC may terminate a Contract for Supplies if it at any time determines that corrupt, fraudulent, collusive or coercive practices were engaged in by representatives of the PIBID/BIRDC or of a Provider, during the procurement or the execution of that contract, in accordance with GCC 36.1.

4. Interpretation

4.1 If the context so requires it, singular means plural and vice versa.

4.2 Incoterms

(a) Unless otherwise specified in the SCC, the meaning of any trade term and the rights and obligations of parties there under shall be as prescribed by Incoterms.

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(b) EXW, CIP, and other similar terms, shall be governed by the rules prescribed in the edition of Incoterms, published by the International Chamber of Commerce as specified in the SCC.

4.3 **Entire Agreement**

The Contract constitutes the entire agreement between the PIBID/BIRDC and the Provider and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the date of Contract.

4.4 **Amendment**

No amendment or other variation of the Contract shall be valid unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorised representative of each party thereto.

4.5 **Non-waiver**

(a) Subject to GCC Sub-Clause 4.5(b) below, no relaxation, forbearance, delay, or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect, or restrict the rights of that party under the Contract, neither shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.

(b) Any waiver of a party's rights, powers, or remedies under the Contract must be in writing, dated, and signed by an authorised representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.

4.6 **Severability**

If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.

5. Language

5.1 The Contract as well as all correspondence and documents relating to the Contract exchanged by the Provider and the PIBID/BIRDC, shall be written in English unless specified otherwise in the SCC. Supporting documents and printed literature that are expressly referenced as part of the Contract may be in another language provided they are accompanied by an accurate translation of the relevant passages in the language specified, in which case, for purposes of interpretation of the Contract, this translation shall govern.

5.2 The Provider shall bear all costs of translation to the governing language and all risks of the accuracy of such translation.

6. Joint Venture, Consortium or Association

Unless otherwise specified in the SCC, if the Provider is a joint venture, consortium, or association, all of the parties shall be jointly and severally liable to the PIBID/BIRDC for the fulfilment of the provisions of the Contract and shall designate one party to act as a leader with authority to bind the joint venture, consortium, or association. The composition or the constitution of the joint venture, consortium, or association shall not be altered without the prior consent of the PIBID/BIRDC.

7. Eligibility

7.1 The Provider and its Subcontractors shall have the nationality of an eligible country. A Provider or Subcontractor shall be deemed to have the nationality of a country if it is a

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citizen or constituted, incorporated, or registered, and operates in conformity with the provisions of the laws of that country.

7.2 All Supplies and Related Services to be supplied under the Contract shall have their origin in Eligible Countries. For the purpose of this Clause, origin means the country where the Supplies have been grown, mined, cultivated, produced, manufactured, or processed, or through manufacture, processing, or assembly, another commercially recognised article results that differs substantially in its basic characteristics from its imported components.

8. Notices

8.1 Any notice given by one party to the other pursuant to the Contract shall be in writing to the address specified in the SCC. The term "in writing" means communicated in written form with proof of receipt.

8.2 A notice shall be effective when delivered or on the notice's effective date, whichever is later.

9. Governing Law

The Contract shall be governed by and interpreted in accordance with the laws of Uganda unless otherwise specified in the SCC.

10. Settlement of Disputes

10.1 The PIBID/BIRDC and the Provider shall make every effort to resolve amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the Contract.

10.2 If the parties fail to resolve such a dispute or difference by mutual consultation within twenty-eight (28) days from the commencement of such consultation, either party may require that the dispute be referred for resolution under the Arbitration and Conciliation Act of Uganda Cap 4 or such other formal mechanism specified in the SCC.

11. Scope of Supply

11.1 The Supplies and Related Services to be provided under the contract shall be as specified in the Statement of Requirements.

11.2 The Supply and related services exclusively include all such items and services specifically mentioned in the Contract and specified in the technical specifications or statement of requirements. The details of shipping and other documents to be furnished by the Supplier are specified in the **SCC**.

12. Delivery and Documents

12.1 Subject to GCC Sub-Clause 34.1, the Delivery of the Supplies and Completion of the Related Services shall be in accordance with the Delivery and Completion Schedule specified in the Statement of Requirements. The details of shipping and other documents to be furnished by the Supplier are specified in the **SCC.**

12.2 The Provider may deliver electronically and/or per courier service to the PIBID/BIRDC the documents specified in GCC 12.1.

13. Provider's Responsibilities

The Provider shall provide all the Supplies and Related Services included in the Scope of Supply in accordance with GCC Clause 11, and the Delivery and Completion Schedule, as per GCC Clause 12.

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14. PIBID/BIRDC's Responsibilities

14.1 Whenever the provision of Supplies and Related Services requires that the Provider obtain permits, approvals, and import and other licenses from local public authorities in Uganda, the PIBID/BIRDC shall, if so required by the Provider, make its best effort to assist the Provider in complying with such requirements in a timely and expeditious manner.

14.2 The PIBID/BIRDC shall pay all costs involved in the performance of its responsibilities, in accordance with GCC Sub-Clause 14.1.

15. Contract Price

15.1 The Contract Price shall be as specified in the Agreement subject to any additions and adjustments thereto, or deductions therefrom, as may be made pursuant to the Contract.

15.2 Prices charged by the Provider for the Supplies delivered and the Related Services performed under the Contract shall not vary from the prices quoted by the Provider in its bid, with the exception of any price adjustments authorised in the SCC.

16. Terms of Payment

16.1 The Contract Price shall be paid as specified in the SCC.

16.2 The Provider's request for payment shall be made to the PIBID/BIRDC in writing, accompanied by invoices describing, as appropriate, the Supplies delivered and Related Services performed, and by the documents submitted pursuant to GCC Clause 12 and upon fulfilment of all the obligations stipulated in the Contract.

16.3 Unless otherwise specified in the SCC, payments shall be made promptly by the PIBID/BIRDC, no later than thirty (30) days after submission of an invoice or request for payment by the Provider, and its certification by the PIBID/BIRDC. The PIBID/BIRDC shall certify or reject such invoices or payment requests within five (5) days from receipt. Where such invoices or payment requests are rejected, the PIBID/BIRDC shall advise the Provider of the reasons for rejection.

16.4 The currency or currencies in which payments shall be made to the Provider under this Contract shall be specified in the SCC.

17 Advance Payment Guarantee

17.1 Unless otherwise stated in the SCC, where any payment is made in advance of delivery of any Supplies or Related Services, payment of the advance payment shall be made against the provision by the Provider of a bank guarantee or an on-demand insurance bond with proof of re-insurance, for the same amount, and shall be valid for the period stated in the SCC.

17.2 Should the advance payment guarantee cease to be valid and the Provider fails to re-validate it, a deduction equal to the amount of the advance payment may be made by the PIBID/BIRDC from future payments due to the Provider under the contract.

17.3 If a Contract is terminated for any reason, the guarantee securing the advance may be invoked in order to recover the balance of the advance still owed by the Provider.

18. Taxes and Duties

18.1 Except as otherwise specifically provided in the SCC, the Provider shall bear and pay all taxes, import duties, and levies imposed on the Provider, by all municipal, state or national government authorities, both within and outside Uganda, in connection with the Supplies and Related Services to be supplied under the Contract.

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18.2 Notwithstanding GCC Sub-Clause 18.1, and unless otherwise specified in the SCC, the PIBID/BIRDC shall bear and promptly pay all taxes, import duties, and levies imposed by law in Uganda on the Supplies and Related Services when such Supplies and Related Services are supplied from and delivered or completed outside Uganda.

18.3 If any tax exemptions, reductions, allowances or privileges may be available to the Provider in Uganda, the PIBID/BIRDC shall use its best efforts to enable the Provider to benefit from any such tax savings to the maximum allowable extent.

18.4 For the purpose of the Contract, it is agreed that the Contract Price specified in the Agreement is based on the taxes, duties, levies, and charges prevailing at the date twenty-eight (28) days prior to the date of bid submission in Uganda (called "tax" in this sub-clause). If any tax rates are increased or decreased, a new tax is introduced, an existing tax is abolished, or any change in interpretation or application of any tax occurs in the course of the performance of the Contract, which was or will be assessed on the Provider, its Subcontractors, or their employees in connection with performance of the Contract, an equitable adjustment to the Contract Price shall be made to fully take into account any such change by addition to or reduction from the Contract Price, as the case may be.

19. Performance Security

19.1 If so stated in the SCC, the Provider shall, within twenty-one (21) days of the notification of contract award, provide a Performance Security for the due performance of the Contract in the amount and currency specified in the SCC or in a freely convertible currency acceptable to the PIBID/BIRDC.

19.2 The proceeds of the Performance Security shall be payable to the PIBID/BIRDC as compensation for any loss resulting from the Provider's failure to complete its obligations under the Contract.

19.3 The Performance Security shall be in one of the forms stipulated by the PIBID/BIRDC in the SCC, or in another form acceptable to the PIBID/BIRDC.

19.4 The Performance Security shall be discharged by the PIBID/BIRDC and returned to the Provider not later than twenty-eight (28) days following the date of completion of the Provider's performance obligations under the Contract, including any warranty obligations, unless specified otherwise in the SCC.

20. Copyright

The copyright in all drawings, documents, and other materials containing data and information furnished to the PIBID/BIRDC by the Provider herein shall remain vested in the Provider, or, if they are furnished to the PIBID/BIRDC directly or through the Provider by any third party, including Providers of materials, the copyright in such materials shall remain vested in such third party.

21. Confidential Information

21.1 The PIBID/BIRDC and the Provider shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data, or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following completion or termination of the Contract. Notwithstanding the above, the Provider may furnish to its Subcontractor such documents, data, and other information it receives from the PIBID/BIRDC to the extent required for the Subcontractor to perform its work under the Contract, in which event the Provider shall obtain from such Subcontractor an undertaking of confidentiality similar to that imposed on the Provider under GCC Clause 21.

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21.2 The PIBID/BIRDC shall not use such documents, data, and other information received from the Provider for any purposes unrelated to the contract. Similarly, the Provider shall not use such documents, data, and other information received from the PIBID/BIRDC for any purpose other than the design, procurement, or other work and services required for the performance of the Contract.

21.3 The obligation of a party under GCC Sub-Clauses 21.1 and 21.2 above, however, shall not apply to information that:

(a) the PIBID/BIRDC or Provider need to share with any institution participating in the financing of the Contract;

(b) now or hereafter enters the public domain through no fault of that party;

(c) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party; or

(d) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality.

21.4 The above provisions of GCC Clause 21 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Supply or any part thereof.

21.5 The provisions of GCC Clause 21 shall survive completion or termination, for whatever reason, of the Contract.

22. Subcontracting

22.1 The Provider shall notify the PIBID/BIRDC in writing of all subcontracts awarded under the Contract if not already specified in the bid. Subcontracting shall in no event relieve the Provider from any of its obligations, duties, responsibilities, or liability under the Contract.

22.2 Subcontracts shall comply with the provisions of GCC Clauses 3 and 7.

23. Specifications and Standards

23.1 Technical Specifications and Drawings

(a) The Provider shall ensure that the Supplies and Related Services comply with the technical specifications and other provisions of the Contract.

(b) The Provider shall be entitled to disclaim responsibility for any design, data, drawing, specification or other document, or any modification thereof provided or designed by or on behalf of the PIBID/BIRDC, by giving a notice of such disclaimer to the PIBID/BIRDC.

(c) The Supplies and Related Services supplied under this Contract shall conform to the standards mentioned in the Statement of Requirements and, when no applicable standard is mentioned, the standard shall be equivalent or superior to the official standards whose application is appropriate to the country of origin of the Supplies.

23.2 Wherever references are made in the Contract to codes and standards in accordance with which it shall be executed, the edition or the revised version of such codes and standards shall be those specified in the Statement of Requirements. During Contract execution, any changes in any such codes and standards shall be applied only after approval by the PIBID/BIRDC and shall be treated in accordance with GCC Clause 34.

24. Packing and Documents

24.1 The Provider shall provide such packing of the Supplies as is required to prevent their damage or deterioration during transit to their final destination, as indicated in the Contract. During transit, the packing shall be sufficient to withstand, without limitation, rough

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handling and exposure to extreme temperatures, salt and precipitation, and open storage. Packing case size and weights shall take into consideration, where appropriate, the remoteness of the Supplies' final destination and the absence of heavy handling facilities at all points in transit.

24.2 The packing, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the Contract, including additional requirements, if any, specified in the SCC, and in any other instructions ordered by the PIBID/BIRDC.

25. Insurance

Unless otherwise specified in the SCC, the Supplies provided under the Contract shall be fully insured, in a freely convertible currency from an eligible country, against loss or damage incidental to manufacture or acquisition, transportation, storage, and delivery, in accordance with the applicable Incoterm or in the manner specified in the SCC.

26. Transportation

Responsibility for transportation of the Supplies shall be in accordance with the Incoterm specified in the SCC.

27. Inspections and Tests

27.1 The Provider shall at its own expense and at no cost to the PIBID/BIRDC carry out all such tests and/or inspections of the Supplies and Related Services as are specified in the Statement of Requirements.

27.2 The inspections and tests may be conducted on the premises of the Provider or its Subcontractor, at point of delivery, and/or at the Supplies' final destination, or in another place in Uganda as specified in the Statement of Requirements. Subject to GCC Sub-Clause 27.3, if conducted on the premises of the Provider or its Subcontractor, all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no charge to the PIBID/BIRDC.

27.3 The PIBID/BIRDC or its designated representative shall be entitled to attend the tests and/or inspections referred to in GCC Sub-Clause 27.2, provided that the PIBID/BIRDC bears all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all travelling and board and lodging expenses.

27.4 Whenever the Provider is ready to carry out any such test and inspection, it shall give a reasonable advance notice, including the place and time, to the PIBID/BIRDC. The Provider shall obtain from any relevant third party or manufacturer any necessary permission or consent to enable the PIBID/BIRDC or its designated representative to attend the test and/or inspection.

27.5 The PIBID/BIRDC may require the Provider to carry out any test and/or inspection not required by the Contract but deemed necessary to verify that the characteristics and performance of the Supplies comply with the technical specifications codes and standards under the Contract, provided that the Provider's reasonable costs and expenses incurred in the carrying out of such test and/or inspection shall be added to the Contract Price. Further, if such test and/or inspection impedes the progress of manufacturing and/or the Provider's performance of its other obligations under the Contract, due allowance will be made in respect of the Delivery Dates and Completion Dates and the other obligations so affected.

27.6 The Provider shall provide the PIBID/BIRDC with a report of the results of any such test and/or inspection.

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27.7 The PIBID/BIRDC may reject any Supplies or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Provider shall either rectify or replace such rejected Supplies or parts thereof or make alterations necessary to meet the specifications at no cost to the PIBID/BIRDC, and shall repeat the test and/or inspection, at no cost to the PIBID/BIRDC, upon giving a notice pursuant to GCC Sub-Clause 27.4.

27.8 The Provider agrees that neither the execution of a test and/or inspection of the Supplies or any part thereof, nor the attendance by the PIBID/BIRDC or its representative, nor the issue of any report pursuant to GCC Sub-Clause 27.6, shall release the Provider from any warranties or other obligations under the Contract.

28. Liquidated Damages

If so stated in the SCC and except as provided under GCC Clause 33, if the Provider fails to deliver any or all of the Supplies or perform the Related Services within the period specified in the Contract, the PIBID/BIRDC may without prejudice to all its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to the percentage specified in the SCC of the Contract Price for each week or part thereof of delay until actual delivery or performance, up to a maximum deduction of the percentage specified in those SCC. Once the maximum is reached, the PIBID/BIRDC may terminate the Contract pursuant to GCC Clause 36.

29. Warranty

29.1 The Provider warrants that all the Supplies are new, unused, and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the Contract.

29.2 Subject to GCC Sub-Clause 23.1, the Provider further warrants that the Supplies shall be free from defects arising from any act or omission of the Provider or arising from design, materials, and workmanship, under normal use in the conditions prevailing in Uganda.

29.3 Unless otherwise specified in the SCC, the warranty shall remain valid for twelve (12) months after the Supplies, or any portion thereof as the case may be, have been delivered to and accepted at the final destination indicated in the SCC, or for eighteen (18) months after the date of shipment or loading in the country of origin, whichever period concludes earlier.

29.4 The PIBID/BIRDC shall give notice to the Provider stating the nature of any such defects together with all available evidence thereof, promptly following the discovery thereof. The PIBID/BIRDC shall afford all reasonable opportunity for the Provider to inspect such defects.

29.5 Upon receipt of such notice, the Provider shall, within two weeks or such other period specified in the SCC, expeditiously repair or replace the defective Supplies or parts thereof, at no cost to the PIBID/BIRDC.

29.6 If having been notified, the Provider fails to remedy the defect within the period specified in Sub-Clause 29.5, the PIBID/BIRDC may proceed to take within a reasonable period such remedial action as may be necessary, at the Provider's risk and expense and without prejudice to any other rights which the PIBID/BIRDC may have against the Provider under the Contract.

30. Patent Indemnity

30.1 The Provider shall, subject to the PIBID/BIRDC's compliance with GCC Sub-Clause 30.2, indemnify and hold harmless the PIBID/BIRDC and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses,

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damages, costs, and expenses of any nature, including attorney's fees and expenses, which the PIBID/BIRDC may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract by reason of:

(a) the installation of the Supplies by the Provider or their use in Uganda or where the Site is located; and

(b) the sale in any country of the products produced by the Supplies.

Such indemnity shall not cover any use of the Supplies or any part thereof other than for the purpose indicated by or to be reasonably inferred from the Contract, neither any infringement resulting from the use of the Supplies or any part thereof, or any products produced thereby in association or combination with any other equipment, plant, or materials not supplied by the Provider, pursuant to the Contract.

30.2 If any proceedings are brought or any claim is made against the PIBID/BIRDC arising out of the matters referred to in GCC Sub-Clause 30.1, the PIBID/BIRDC shall promptly give the Provider a notice thereof, and the Provider may at its own expense and in the PIBID/BIRDC's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim.

30.3 If the Provider fails to notify the PIBID/BIRDC within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the PIBID/BIRDC shall be free to conduct the same on its own behalf.

30.4 The PIBID/BIRDC shall, at the Provider's request, afford all available assistance to the Provider in conducting such proceedings or claim, and shall be reimbursed by the Provider for all reasonable expenses incurred in so doing.

30.5 The PIBID/BIRDC shall indemnify and hold harmless the Provider and its employees, officers, and Subcontractors from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Provider may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided or designed by or on behalf of the PIBID/BIRDC.

31. Limitation of Liability

Except in cases of gross negligence or wilful misconduct:

(a) neither party shall be liable to the other party for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the Provider to pay liquidated damages to the PIBID/BIRDC; and

(b) the aggregate liability of the Provider to the PIBID/BIRDC, whether under the Contract, in tort, or otherwise, shall not exceed the total contract value or such other amount specified in the SCC, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment, or to any obligation of the Provider to indemnify the PIBID/BIRDC with respect to patent infringement.

32. Change in Laws and Regulations

Unless otherwise specified in the Contract, if after the date of the Bidding Document, any law, regulation, ordinance, order or bylaw having the force of law is enacted, promulgated,

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abrogated, or changed in Uganda or where the Site is located (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the Delivery Date and/or the Contract Price, then such Delivery Date and/or Contract Price shall be correspondingly increased or decreased, to the extent that the Provider has thereby been affected in the performance of any of its obligations under the Contract. Notwithstanding the foregoing, such additional or reduced cost shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where applicable, in accordance with GCC Clause 15.

33. Force Majeure

33.1 The Provider shall not be liable for forfeiture of its Performance Security, liquidated damages, or termination for default if and to the extent that its delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure.

33.2 For purposes of this Clause, "Force Majeure" means an event or situation beyond the control of the Provider that is not foreseeable, is unavoidable, and its origin is not due to negligence or lack of care on the part of the Provider. Such events may include, but not be limited to, acts of the Government of Uganda in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.

33.3 If a Force Majeure situation arises, the Provider shall promptly notify the PIBID/BIRDC in writing of such condition and the cause thereof. Unless otherwise directed by the PIBID/BIRDC in writing, the Provider shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

34. Change Orders and Contract Amendments

34.1 The PIBID/BIRDC may at any time order the Provider through notice in accordance with GCC Clause 8, to make changes within the general scope of the Contract in any one or more of the following:

(a) drawings, designs, or specifications, where Supplies to be furnished under the Contract are to be specifically manufactured for the PIBID/BIRDC;

(b) the method of shipment or packing;

(c) the place of delivery; and

(d) the Related Services to be provided by the Provider.

34.2 The Provider shall not be bound to make changes in the Supplies or Related Services, to perform any additional, changed or accelerated work unless the additional Contract Price, payment conditions, time for Completion and any other conditions under the Contract affected by such change order request or variation have been mutually agreed in writing, or unless the PIBID/BIRDC and the Provider have executed a written and signed change order to the Contract for such requested change.

34.3 If any such change causes an increase or decrease in the cost of, or the time required for, the Provider's performance of any provisions under the Contract, an equitable adjustment shall be made in the Contract Price or in the Delivery/Completion Schedule, or both, and the Contract shall accordingly be amended. Any claims by the Provider for adjustment under this Clause must be asserted within twenty-eight (28) days from the date of the Provider's receipt of the PIBID/BIRDC's change order.

34.4 Prices to be charged by the Provider for any Related Services that might be needed but which were not included in the Contract shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the Provider for similar services.

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35. Extensions of Time

35.1 If at any time during performance of the Contract, the Provider or its subcontractors should encounter conditions impeding timely delivery of the Supplies or completion of Related Services pursuant to GCC Clause 12, the Provider shall promptly notify the PIBID/BIRDC in writing of the delay, it's likely duration, and its cause. As soon as practicable after receipt of the Provider's notice, the PIBID/BIRDC shall evaluate the situation and may at its discretion extend the Provider's time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract.

35.2 Except in case of Force Majeure, as provided under GCC Clause 33, a delay by the Provider in the performance of its Delivery and Completion obligations shall render the Provider liable to the imposition of liquidated damages pursuant to GCC Clause 28, unless an extension of time is agreed upon, pursuant to GCC Sub-Clause 35.1.

36. Termination

36.1 The PIBID/BIRDC may, by not less than thirty days written notice of termination to the Provider (except in the event listed in paragraph (f) below, for which there shall be a written notice of not less than sixty days), such notice to be given after the occurrence of any of the events specified in GCC Clause 36.1 (a) to (g), terminate the Contract if:

(a) the Provider fails to remedy a failure in the performance of its obligations within thirty days or within such other period agreed between the Parties in writing;

(b) the Provider becomes, or if any of the Provider's members becomes, insolvent or bankrupt or enters into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary other than for a reconstruction or amalgamation;

(c) the Provider fails to comply with any final decision reached as a result of arbitration proceedings pursuant to GCC Clause 10.2 hereof;

(d) the Provider submits to the PIBID/BIRDC a statement which has a material effect on the rights, obligations or interests of the PIBID/BIRDC and which the PIBID/BIRDC knows to be false;

(e) the Provider is unable as the result of Force Majeure, to perform a material portion of the Services for a period of not less than sixty days;

(f) the PIBID/BIRDC, in its sole discretion and for any reason whatsoever, decides to terminate the Contract;

(g) the Provider, in the judgment of the PIBID/BIRDC, has engaged in corrupt, fraudulent, collusive or coercive practices in competing for or in executing the Contract; or

(h) where the Tribunal directs that a contract should be terminated.

36.2 The Provider may, by not less than thirty days' written notice to the PIBID/BIRDC, such notice to be given after the occurrence of any of the events specified in GCC Clause 36.2 (a) to (d) terminate the Contract if:

(a) the PIBID/BIRDC is in material breach of its obligations pursuant to the Contract and has not remedied the same within thirty days (or such longer period as the Provider may have subsequently approved in writing) following the receipt by the PIBID/BIRDC of the Provider's notice specifying such breach;

(b) the Provider is unable as the result of Force Majeure, to perform a material portion of the Services for a period of not less than sixty days; or

(c) the PIBID/BIRDC fails to comply with any final decision reached as a result of arbitration pursuant to GCC Clause 10.2 hereof.

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36.3 If either Party disputes whether an event specified GCC Clauses 36.1 or GCC Clause 36.2 has occurred, such Party may, within thirty days after receipt of notice of termination from the other Party, refer the matter to arbitration pursuant to GCC Clause 10.2 and the Contract shall not be terminated on account of such event except in accordance with the terms of any resulting arbitral award.

37. Assignment

Neither the PIBID/BIRDC nor the Provider shall assign, in whole or in part, their obligations under this Contract, except with prior written consent of the other party.

38. Sustainable Procurement

38.1If applicable, the Provider/Bidder shall conform to the minimum sustainable procurement technical requirements as specified in the SCC.

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SECTION III: SPECIAL CONDITIONS OF CONTRACT

Procurement Reference Number: **PIBID/SUPLS/2025-2026/00393**

The following Special Conditions of Contract (SCC) shall supplement the General Conditions of Contract (GCC). Whenever there is a conflict, the provisions herein shall prevail over those in the GCC.

Subject and GCC clause reference	Special Conditions of Contract
Eligible Countries GCC 1.1(g)	All countries are eligible, unless as a matter of law or official regulation, the GOU prohibits commercial relations with that country or by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the GOU prohibits any import of Supplies from that country or any payments to persons or entities in that country.
Site GCC 1.1(o)	The Site for delivery of the Supplies is: **PIBID/BIRDC,TBI Nyaruzinga Bushenyi-Uganda.**
Incoterms Edition GCC 4.2(b)	Incoterms shall be governed by the rules prescribed in **Incoterms 2020**.
Notices GCC 8.1	Any notice shall be sent to the following addresses: **For the PDE, the address shall be:** Attention: Head of Procurement and Disposal Unit, Street Address: Plot 26A, Lumumba Avenue, Nakasero Floor/Room number: 1st Floor PDU Town/City: Kampala Country: Uganda Email: procurement@pibid.org; copying director@pibid.org; **For notices, the Provider's address shall be:** **Attention:** Managing Director, **INNOTECH Ingenieursgesellschaft mbH** **Street Address:** Weilemer Weg 27 **Town/City:** 71155 Altdorf **Country:** Germany **Telephone:** +49 07031 744741 **Electronic mail address:** info@innotech-ing.de;
Delivery and Documents GCC 12.1	The supplies are to be delivered within **Five (5) Months** from the date of Contract signing. The shipping and other documents to be furnished by the Provider are: a) Full set of Airway Bill b) Signed Commercial invoices; c) Packaging list.
Terms of Payment GCC 16.1	The structure of payments shall be: full payment following delivery of the Supplies and submission of an invoice and the documents listed in clause 12.1.
Terms of Payment GCC 16.3	Payments shall be made not later than thirty (30) days after submission of an invoice and its certification by the PDE.

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Subject and GCC clause reference	Special Conditions of Contract
Terms of Payment GCC 16.4	The currency of payment shall be: **Euros.**
Packing GCC 24.2	The packing, marking and documentation within and outside the packages shall be: **GOVERNMENT OF UGANDA/Presidential Initiative on Banana Industrial Development (PIBID/BIRDC).**
Insurance GCC 24.1	n.a.
Incoterm for Transportation GCC 25	The supplies shall be delivered: **CPT Entebbe; Incoterm 2020**
Liquidated Damages GCC 27	The liquidated damage shall be: **0% per week** The maximum amount of liquidated damages shall be: **10% of the Contract** Price.
Warranty GCC 28.3	The period of the warranty shall be: **12 months**

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APPENDIX 1: PROFORMA INVOICE SUBMITTED BY BIDDER

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APPENDIX 2: LIST OF SUPPLIES AND PRICE SCHEDULE.

Item No	Part No.	Description of Supplies	Qty	Unit of Meas-ure	Unit Price-Euros	Total Price -Euros
1	KLU-001	Plate Heat Exchanger (Reference:RW2511-123, steamflow:300KG/H, Designpressure:16.0 bar, inlettemperature:130 degrees Celicious, pressure drop:9.3 kPa, Heating Power:188.0 KW	1	Pcs	3,775.00	3,775.00
2	Ener-001.2	Gas Combi Valve GS 116	2	Pcs	575.00	1,150.00
3	SCHELL 001	Lifting Ceiling Drive-Maxi standard 40 Nm	1	Pcs	198.00	198.00
4	Jumag-007	Ball Valve ¾", PN63, stainless steel/PTFE-TFM 1600	6	Pcs	155.00	930.00
5	Jumag-007.1	Ball Valve ½", PN63, stainless steel/PTFE-TFM 1600	2	Pcs	145.00	290.00
6	Jumag-008	Pipe Fitting, GE22-LR ¾"	1	Pcs	9.75	9.75
7	Jumag-009	Add on Kit, separation PI-Converter/DWR	1	Pcs	215.00	215.00
8	Jumag-009.1	Add on Kit, PT100 Pro-face	2	Pcs	475.00	950.00
9	DL-005.6	Clearing Formalities	1	Psch	350.00	350.00
10	DL-005.2	Shipment	1	Psch	1,855.00	1,855.00
				Other additional costs		
				Subtotal		9,722.75
		Enter 0% VAT rate if VAT exempt.		VAT @ %		
				Total		9,722.75 €

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APPENDIX 3: SPECIFICATIONS AND COMPLIANCE SHEET

Item No	Part No.	Technical Specification Required	Compliance of Specification Offered	Technical literature on specification offered in column c
a		*B*	*c*	*d*
1	KLU-001	Plate Heat Exchanger (Reference:RW2511-123, steamflow:300KG/H, Designpressure:16.0 bar, inlettemperature:130 degrees Celicious, pressure drop:9.3 kPa, Heating Power:188.0 KW	Comply	Comply
2	Ener-001.2	Gas Combi Valve GS 116	Comply	Comply
3	SCHELL 001	Lifting Ceiling Drive-Maxi standard 40 Nm	Comply	Comply
4	Jumag-007	Ball Valve ¾", PN63, stainless steel/PTFE-TFM 1600	Comply	Comply
5	Jumag-007.1	Ball Valve ½", PN63, stainless steel/PTFE-TFM 1600	Comply	Comply
6	Jumag-008	Pipe Fitting, GE22-LR ¾"	Comply	Comply
7	Jumag-009	Add on Kit, separation PI-Converter/DWR	Comply	Comply
8	Jumag-009.1	Add on Kit, PT100 Pro-face	Comply	Comply
9	DL-005.6	Clearing Formalities	Comply	Comply
10	DL-005.2	Shipping	Comply	Comply

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APPENDIX 4: DELIVERY AND COMPLETION SCHEDULE

Item No.	Brief Description of Supplies and Related Services	Delivery/Completion Period *(days /wks /mths)*	Delivery Point/Site
Supply and Delivery of Spare Parts for the Drying Unit for the PIBID/BIRDC Pilot Plant at the TBI in Nyaruzinga-Bushenyi			
1.	Plate Heat Exchanger (Reference:RW2511-123, steamflow:300KG/H, Designpressure:16.0 bar, inlettemperature:130 degrees Celicious, pressure drop:9.3 kPa, Heating Power:188.0 KW	12 weeks	Kampala
2.	Gas Combi Valve GS 116	12 weeks	Kampala
3.	Lifting Ceiling Drive-Maxi standard 40 Nm	12 weeks	Kampala
4.	Ball Valve ¾”, PN63, stainless steel/PTFE-TFM 1600	12 weeks	Kampala
5.	Ball Valve ½”, PN63, stainless steel/PTFE-TFM 1600	12 weeks	Kampala
6.	Pipe Fitting, GE22-LR ¾”	12 weeks	Kampala
7.	Add on Kit, separation PI-Converter/DWR	12 weeks	Kampala
8.	Add on Kit, PT100 Pro-face	12 weeks	Kampala
9.	Clearing Formalities	12 weeks	Kampala
10.	Shipment	12 weeks	Kampala

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APPENDIX 5: CONTRACTS COMMITTEE APPROVAL MINUTES

APPENDIX 6: BEST EVALUATED BIDDER'S NOTICE

APPENDIX 7: CLEARANCE FROM PSST TO TRANSACT IN FOREIGN CURRENCY

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APPENDIX 8: JUSTIFICATION FOR USE OF DIRECT PROCUREMENT

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